

8	Dang vs. Nguyen 30-2024-01403534-CU-OR-CJC	Demurrer to Second Amended Complaint The demurrer to second amended complaint of defendants Vinh The Nguyen and Van Nguyen is OVERRULED in part and SUSTAINED in part. <u>Second Cause of Action for Promissory Estoppel - OVERRULED</u> The court already addressed defendants’ arguments on the second cause of action for promissory estoppel in ruling on defendants’ motion for judgment on the pleadings on the first amended complaint. There has been no substantial change in pleading. The court will not change its prior ruling and cautions counsel to refrain from raising in subsequent motions identical issues previously ruled upon. <u>Fourth Cause of Action for Quiet Title – SUSTAINED with 10 days leave to amend</u> While Plaintiff alleges she has “tendered the full repayment of the secured amount to Freedom Mortgage” (SAC ¶ 76), the SAC does not address the \$700,000 loan from Alliance Portfolio, which was also secured by a deed of trust recorded against the property. (SAC ¶ 9.) The declaration relied on by Plaintiff purporting to show the loan was paid in full is not appropriate in opposing a demurrer. Motion to Strike Portions of Second Amended Complaint The motion to strike portions of second amended complaint of defendants Vinh The Nguyen and Van Nguyen is GRANTED in part. Plaintiff has sufficiently alleged facts supporting a prayer for specific performance concerning repayment of the two additional loans. Plaintiff has also sufficiently alleged a cause of action for fraud (i.e., intentional misrepresentation), which supports punitive damages. The motion is DENIED on these grounds. However, Plaintiff has not alleged any contract, statute or law which allows for the recovery of attorney fees or statutory damages. The motion is GRANTED on this ground. If Plaintiff chooses to amend, Plaintiff is ORDERED to file a red-lined and clean version of the amended pleading. Clerk to give notice.
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